

LIMITED SOURCES JUSTIFICATION

ORDER >SAT

FAR PART 8.405-6

Acquisition Plan Action ID: 36C245-25-AP-1091

(1) Contracting Activity: Department of Veterans Affairs, Contracting Office, NCO5, located at Baltimore VAMC, 10 North Greene Street, Baltimore, MD 21201-1524, in support of VISN 05 VA Health Care System at Perry Point Medical Center, 361 Boiler House Road, Perry Point, MD 21902-1103.

Purchase Request Number: 512-25-2-543-0001.

(2) Description of Action: This acquisition is conducted under the authority of the Multiple-Award Schedule Program ([41 U.S.C. 152\(3\)](#) and [40 U.S.C. 501](#)).

Describe the action being reviewed and approved and state whether the action will be awarded a new requirement or a follow-on to an original Federal Supply Schedule (FSS) order number (insert task/delivery order number). This procurement is a 6 Month Follow-On Task Order.

Contract Type is FFP.

Order against: ☒ FSS Contract Number: DLA/NAC BPA: GS23F0019T 36C10G21A0004

Name of Proposed Contractor: MAXIM HEALTHCARE SERVICES, INC.
Street Address: 7227 Lee Deforest Dr.
City, State, Zip: Columbia, MD 21046
Phone: 866-401-5586

(3) Description of Supplies or Services:

The estimated value of the proposed action is **\$ 322,134.00.**

MEDICAL CODING. This process involves the review of medical records and assignment of procedural and diagnostic codes to all outpatient and inpatient care provided in accordance with official VHA Coding guidelines: Center for Medicare and Medicaid Services (CMS) guidelines, Current Procedural Terminology (CPT) of the American Medical Association (AMA), and VA Correct Coding Initiative (CCI), and local VHA coding policies. Coder will also comply with following VHA handbooks and Directives.

Based upon the market research conducted and the resulting analysis, adequate sources of supply for small business concerns were obtained and after reviewing VA's VIP database to identify verified and capable SDVOSBs and VOSBS, the following recommendation has been made. a six-month follow-on task order shall be placed off Maxim's national BPA with the NAC VHA. this market research information is not more than 18 months old.

(4) Identify the Authority and Supporting Rationale

☐ [FAR 8.405-6\(a\)\(1\)\(A\)](#): An urgent and compelling need exists and following the ordering procedures would result in unacceptable delays:

☐ [FAR 8.405-6\(a\)\(1\)\(B\)](#): Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized;

☒ [FAR 8.405-6\(a\)\(1\)\(C\)](#): In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order must not have been previously issued under sole source or limited source procedures. **The original order was not previously issued under sole-source or limited-sources procedures.**

☐ [FAR 8.405-6\(b\)](#): Items peculiar to one manufacturer:

☐ A patent, copyright or proprietary data limits competition. The proprietary data is:

☐ These are "direct replacements" parts/components for existing equipment.

☐ The material/service must be compatible in all aspects (form, fit and function) with existing systems presently installed/performing.

(5) Describe Why You Believe the Order Represents the Best Value consistent with FAR 8.404(d) to aid the contracting officer in making this best value determination:

This procurement is being exercised, Per FAR 8.405-6(a)(1)(C)

In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA must not have been previously issued under sole-source or limited-sources procedures.

This order represents the Best Value and is consistent with far 8.404(d) to aid the contracting officer in making this best value determination: The Follow-On Task Order is the best choice at this time for the following reasons:

1. Pricing already established on an FSS, pricing that already has been determined by the government as fair and reasonable, and
2. There is a several month contracting turnaround period to put a different vendor in place, subjecting the vendor to a significant learning curve when it starts work; the more significant the learning curve, the more time and effort spent on the contract, resulting in disruption to continuity of operations, higher costs and ultimately putting our patients at risk.

(6) Describe the Market Research Conducted among schedule holders and the results or a statement of the reason market research was not conducted.

Market Research is current and is within FAR 10.002(b)(1) requirements of 18 months old. This procurement is being exercised, per FAR 8.405-6(a)(1)(c) – logical follow-on FSS Task Order. Order 36C24523N0270 was competed under RFQ 36C24523Q0108.

(7) Any Other Facts Supporting the Justification: N/A.

(8) A Statement of the Actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made:

Make concerted efforts to be sure packages are submitted on time, as to not miss Option Years.

(9) Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge. I understand that processing of this limited sources justification restricts consideration of Federal Supply Schedule contractors to fewer than the number required by FAR Subpart 8.4. *(This signature is the requestor's supervisor, fund control point official, chief of service or someone with responsibility and accountability.)*

Darrell Lovejoy
Program Office COR – Medical Administration
Baltimore VAMC

(10) Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

a. Contracting Officer's Certification (required): I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Dan Feng Lu
CONTRACTING OFFICER
NCO5

b. One Level Above the Contracting Officer (Required over the SAT but not exceeding \$750K):
I certify the justification meets requirements for other than full and open competition.

Evelyn Mount
Branch Chief
NCO5